भारत सरकार–कॉर्पोरेट कार्य मंत्रालय
कम्पनी रजिस्ट्रार कार्यालय, पश्चिम बंगाल

नाम परिवर्तन के पश्चात नया निगमन प्रमाण–पत्र

कार्पोरेट पहचान संख्या : L31102WB1976PLC030676

मेसर्स MARSON'S LTD

के मामले में, मैं एतद्द्वारा स्थापित करता हूँ कि मेसर्स
MARSON'S LTD

जो मूल रूप से [illegible] छब्बीस अगस्त उन्नीस सौ छियत्तर को कम्पनी अधिनियम, 1956 (1956 की 1) के अधीन मेसर्स
MARSON'S ELECTRICALS LIMITED

के रूप में निगमित की गई थी, ने कम्पनी अधिनियम, 1956 की धारा 21 की शर्तों के अनुसार विधिवत आवश्यक विशेष संकल्प पारित कर दिया था लिखित रूप में यह सूचित करके की उसे भारत का अनुमोदन, कम्पनी अधिनियम, 1956 की धारा 21 के साथ पठित, भारत सरकार, कम्पनी कार्य विभाग, नई दिल्ली की अधिसूचना सं. सा. का. नि 507 (अ) दिनांक 24.6.1985 एस.आर.एन A67884296 दिनांक 25/08/2009 के द्वारा पाया हो गया है, उक्त कम्पनी का नाम आज परिवर्तित रूप में मेसर्स
MARSONS LIMITED

हो गया है और यह प्रमाण-पत्र, उक्त अधिनियम की धारा 23(1) के अनुसरण में जारी किया जाता है।

यह प्रमाण-पत्र मेरे हस्ताक्षर द्वारा कोलकाता में आज दिनांक पच्चीस अगस्त दो हजार नौ को जारी किया जाता है।

GOVERNMENT OF INDIA - MINISTRY OF CORPORATE AFFAIRS
Registrar of Companies, West Bengal

Fresh Certificate of Incorporation Consequent upon Change of Name

Corporate Identity Number : L31102WB1976PLC030676

In the matter of M/s MARSON'S LTD

I hereby certify that MARSON'S LTD which was originally incorporated on Twenty Sixth day of August Nineteen Hundred Seventy Six under the Companies Act, 1956 (No. 1 of 1956) as MARSON'S ELECTRICALS LIMITED having duly passed the necessary resolution in terms of Section 21 of the Companies Act, 1956 and the approval of the Central Government signified in writing having been accorded thereto under Section 21 of the Companies Act, 1956, read with Government of India, Department of Company Affairs, New Delhi, Notification No. G.S.R 507 (E) dated 24/06/1985 vide SRN A67884296 dated 25/08/2009 the name of the said company is this day changed to MARSONS LIMITED and this Certificate is issued pursuant to Section 23(1) of the said Act.

Given under my hand at Kolkata this Twenty Fifth day of August Two Thousand Nine

(NAUBAT SINGH)

उप कम्पनी रजिस्ट्रार / Deputy Registrar of Companies
पश्चिम बंगाल
West Bengal

कम्पनी रजिस्ट्रार के कार्यालय अभिलेख में उपलब्ध पत्राचार का पता :
Mailing Address as per record available in Registrar of Companies office

MARSONS LIMITED
4, CHANDNI CHOWK STREET,, KOLKATA,
WEST BENGAL - 700072,
West Bengal, INDIA

सत्यमेव जयते

SECOND
CERTIFICATE OF INCORPORATION
L31102WB1976PLC030676.

I hereby certify that MARSON'S ELECTRICALS PRIVATE LIMITED was incorporated on the Twenty Sixth day of August One thousand nine hundred and Seventy Six under the Companies Act, 1956 (No. 1 of 1956) and that the company is limited.

The company has been converted in to deemed public company U/s.43A(1A) of the Companies Act, 1956 with effect from 21.07.1981.

The name of the company was changed to MARSON'S LIMITED vide letter No.NCR/CN/30676/91 dated 12.02.1991, U/s.21 of the Companies Act, 1956 with effect from 20.02.1991.

Issued at Kolkata this the Fifteenth day of June Two thousand Seven.

कम्पनी रजिस्ट्रार Registrar of Companies पश्चिम बंगाल West Bengal

(A.M. SINGH)
DEPUTY REGISTRAR OF COMPANIES,
WEST BENGAL.KOLKATA.

उपसहायक कम्पनी रजिस्ट्रार
Dy./Asstt. Registrar of Companies,
पश्चिम बंगाल/West Bengal कोलकाता,Kolkata

सत्यमेव जयते

Form I.R.

CERTIFICATE OF INCORPORATION

No. ..... 30676 ..... of 1976

I hereby certify that ..... **Marson's Electricals Limited** ..... is this day incorporated under the Companies Act, 1956 (No. 1 of 1956) and that the company is Limited.

Given under my hand at ..... **Calcutta** ..... this **Twenty sixth** day of ..... **August** ..... One thousand nine hundred and ... **Seventy six** .....

Seal

(S.C.BASU)
Registrar of Companies
WEST BENGAL

J.S.C.I
S.G.P. - 4000-4-76

सत्यमेव जयते

FRESH CERTIFICATE OF INCORPORATION CONSEQUENT ON CHANGE OF NAME

In the Office of the Registrar of Companies, **West Bengal** (Under the Companies Act, 1956 (1 of 1956)

IN THE MATTER OF **MARSON'S ELECTRICALS LIMITED.**

I hereby certify that the **MARSON'S ELECTRICALS LIMITED** Which was originally Incorporated on **.26th** day of **August** 1976 under the **Companies** Act **1956** and under the name **MARSON'S ELECTRICALS LIMITED** having duly passed the necessary resolution in terms of section **21/22(1) (a)/22(1) (b)** of Companies Act, 1956, and the approval of the Central Government signified in writing having been recorded thereto in the Department of Company Affairs.

Regional Director Registrar of Companies letter No. **NCB / CN / 30676/91** dated **12/2/1991** the name of the said company is this day changed to **MARSON'S LIMITED** and this certificate is issued pursuant to section 23 (I) of the said Act.

Given under my hand at **Calcutta** this 18th day of . **February** 1991 (One thousand nine hundred and **Ninety One.**)

Seal

Sd/-

Asstt.Registrar of Companies

सत्यमेव जयते

(Section 18 (1) of Companies Act. 1956)

CERT IFICATE OF REGISTRATION OF ORDER OF COURT CONFIRMING ALTERATION OF OBJECTS

The ..... **Marson's Limited** ...having by special resolution altered the provision of its Memorandum of Association with respect to its objects and such alteration having been confirmed by an order of **Company Law Board, Eastern Region Branch, 9 Old Post Office Street, Calcutta** bearing dated the .....4th June 1993 .....

I hereby certify that certified copy of the said order together with the printed copy of the Memorandum of Association as altered has this day been registered.

Given under my hand at ..... **Calcutta** ..... this 30th day of ..... **November** ..... One thousand nine hundred and ..... **Ninety Three.** .....

Seal

Registrar of Companies
WEST BENGAL

J.S.C. - 5

23/MFS/Civil/Cal/89-15,000--9.8.90-GIPG.

सत्यमेव जयते

(Section 18 (1) of Companies Act. 1956)

CERTIFICATE OF REGISTRATION OF ORDER OF COURT CONFIRMING ALTERATION OF OBJECTS

The ..... **Marson's Limited** ...having by special resolution altered the provision of its Memorandum of Association with respect to its objects and such alteration having been confirmed by an order of **Company Law Board, Eastern Region Branch, Calcutta** bearing dated the .....20th October 1994 .....

I hereby certify that certified copy of the said order together with the printed copy of the Memorandum of Association as altered has this day been registered.

Given under my hand at ..... **Calcutta** ..... this 12th day of ..... **January** ..... One thousand nine hundred and ..... **Ninety Five.**

Seal

Asstt. Registrar of Companies
WEST BENGAL

J.S.C. - 5

MGIPTC--361-19 Genl. Admn / 78-79 -- GIPTC -- (C-326) --30-5-70--7,000

MARSONS LIMITED

DIRECTOR

THE COMPANIES ACT, 1956

COMPANY LIMITED BY SHARES

MEMORANDUM OF ASSOCIATION
OF
MARSONS LIMITED

I. The name of the Company is MARSONS LIMITED

II The Registered Office of the Company will be situated in the State of West Bengal.

III. The objects for which the company is established are :-

(A) **MAIN OBJECTS TO BE PURSUED ON INCORPORATION :-**

1. To carry on the Business of Manufacturers, Repairers, Importers, Exporters, Suppliers of, Selling Agents, Distributing Agents, Intermediatories, Representatives for and Dealers in all types of Electrical Transformers, Low and High Voltage, Switch ,Gears, Switches and Starters, Metering Sets, Voltage Stabilizers, Motors Pumps, Furnaces, Ovens, Control Equipments, Transmission Towers and Overhead Fittings, Mining Equipments, Electrical Substation Equipments.

2. To carry on business of ferrous and non-ferrous metals,

Founders, Manufacturers of, dealers in, selling agents, intermediatories for Cables Wires, Plates, Sheets, Strips, Rods, Welding Wires made out of Copper, Aluminium, Brass, Steel, Electrical stamping, insulating materials and other Raw Materials, Machineries and all other Machineries and Raw Materials necessary for manufacture of all type of transformers, all other Mechanical & Electrical Machineries, Equipments, devices and appliances for substation and Equipments for turnkey projects.

*3. To plan, promote, generate, acquire by purchase in bulk, develop, distribute and accumulate power by wind, solar, hydro, thermal, atomic, biomass, coal, liginite, gas ocean energy, geothermal or any other form by which energy, power can be produced and to transmit, distribute, sell, and supply such power for captive consumption by the company and /or for consumption by the others.

*4. To carry on all or any of the business of manufacturers, installers, maintainers, hirers, repairers of and dealers in electrical and electronics appliances equipments and apparatus of every descriptions, radio, television, and telecommunication requisities and supplies, equipment and stores of all kinds.

*5 To carry on the business as manufacturers, importers, exporters, dealers distributors, buyers, sellers, commission agents of all types of pollution control equipments and devices and in connection therewith to import, export, buy and sell any technology and to lay down, establish, fix and carry out necessary plants and projects.

(B) **OBJECTS INCIDENTAL OR ANCILLARY TO THE ATTAINMENT OF MAIN OBJECTS :-**

1. To borrow or raise or secure the payment of money by the issue of debentures, bonds, obligations, deposit notes and securities of all kinds and to frame, constitute and secure the same, as may seem expedient, with full power to make the same transferable by delivery, or by instrument of transfer or otherwise, and either perpetual or terminable and other redeemable or otherwise, and to charge or secure the same by trust deed or otherwise on the undertaking of the Company, or upon any specific property and rights, presient and future of the Company or otherwise howsoever, and collaterally or further to secure any securities of the Company by a trust deed or other assurance.

2. To facilitate and encourage the creation, issue or conversion of debentures, bonds, obligations, shares, stock and securities and to act as trustees in connection with any such securities and to take part in the conversion of business concerns and under takings into companies.

3. To own, establish or acquire and maintain shops, store rooms and other place for the production, custody, bailment, deposit or protection of goods for having them for sale or otherwise.

4. To acquire by purchase, lease, exchange, or otherwise land, buildings and hereditaments of any tenure or description whatsoever, plant and machinery and any estate of interest therein and any rights over or connected with the land and to turn the same to account as may seem expedient, and in particular by preparing building, sites and by constructing, reconstructing, altering, improving, decorating, furnishing, and maintaining, offices, flats house, cinema houses, laboratories, cold storages, factories, warehouses, shops, buildings, works, and conveniences of all kinds and byconsolidating orconnecting or sub-dividing

properties and by leasing, transferring, exchanging or otherwise disposing of the same, as may be necessary for the purpose of the Company.

5. To promote any other company for the purpose of acquiring all or any property thereof or for any other purpose which may seem directly or indirectly calculated to benefit this Company.

6. To acquire and undertake all or any part of the business property and liabilities of any person or company carrying on any business which this Company is authorised to carry on or possessed of.

7. To hold or otherwise acquire shares in any other company having its objects altogether or in part similar to those of this Company or carrying on any business capable of being conducted so as, directly or indirectly, benefit this Company.

8. To apply for, purchase or otherwise acquire any patents, brevested, invention, licences, concessions and the like conferring any exclusive omon exclusive or limited right to use, or any secret or other information as to any invention which may seem capable of being used for any of the purposes of the Company of the acquisition of which may seem calculated directly or indirectly to benefit the Company and to use,exercise, develop or grant licences in respect of or otherwise turn to account the property, right or information so acquired.

9. To obtain any Order or Act, of Legislature or Parliament for enabling the Company to obtain powers and authorities necessary or expedient to carry out or extend any of the objects of the Company or for any other purpose which may seem expedient and to oppose any proceedings or applications which may seem calculated, directly or indirectly, to prejudice the Company's interest.

10. To carry on business as financiers and to undertake and carry on and execute all kinds financial, commercial, trading and other operations in which the Company is authorised to carry on business and also to borrow or lend and advance money and to sell and deal with stock, funds, shares debentures, debenture stocks, bonds, obligations and other securities provided that the Company shall not carry on the business of Banking.

11 To invest and deal with moneys of the Company not immediately required upon such securities, and in such manner as may from time to time be determined.

12. To guarantee the payment of money unsecured or secured by or payable under or in respect of promissory notes, bonds, debentures, contracts, mortgages, charges, obligations, instructions and securities of any company or of any authority supreme, municipal, local or otherwise or of any person whomsoever, whether incorporated or not and generally to guarantee or become sureties the performance of any contracts or obligations.

13. To enter into partnership or into any arrangement for sharing profits, union of interests or co-operation, joint adventure, reciprocal concession or otherwise with any company, firm or persons carrying on or proposing to carry on any business within the objects of this Company and to take or otherwise acquire and hold shares, stocks or securities in any such company.

14. To draw make, accept, endorse, and negotiate, claques promissory notes, bills of exchange, hundies and other negotiable instruments.

15. To provide for the welfare of the employees, ex-employees, directors and ex-directors of the Com pany or its predecessors in business or the family members dependents or connections of such persons by building or contributing to the building of houses, dwelling or quarters or by grants or money, pensions, gratuities, allowances, payment towards insurances, houses, profit shares bonuses, or benefits or any other payments or by establishing, supporting or from time to time subscribing or contributing or aiding in the establishment and support of associations, institutions, funds including provident funds, trusts, profit sharing or other schemes and conveniences, and by providing of subscribing or contributing towards the place of instruction and recreation, hospitals and dispensaries, medical and other attendances as the Company shall think fit.

16. To support, donate, contribute, subscribe, to give and to pay incash or in kind to any individual or body of individuals and also the contribute, donate and subscribe to any charitable, religious, educational or other public institutions, trusts, funds, clubs, societies or individual or body of individuals, subject to the provisions of Sections 293 and 293A of the Companias Act, 1956.

17. Subject to the Provisions of the Act to amalgamate with any other company whose objects are or which includes objects similar to those of this Company whether by sale or purchase or otherwise.

18. To sell or dispose of the undertaking of the Company or any part thereof for such conditions as the Company may think fit and in particular for shares, debentures or secutities of any other company having objects altogether or in part similar to those of this Company.

19. To carry on any other business, industry or trade whether manufacturing, commercial or otherwise that may seem to the Company capable of being conveniently Carrie don in connection with the above objects or calculated directly or indirectly or to enhance the value of or render profitable any of the Company's properties or rightsor which it may be advisable to undertake with a view to improving, rendering valuable or turning to account any property, real or personal, belonging tothe Company or in which the Company may be interested.

20. To do all or any of the above things either as principal, agents, trustees, contractors or otherwise and either by or through agents, sub-contractors, trustees or otherwise and either alone or in conjunction with others and to do all such things as the incidental or conducive to the attainment of the above objects.

21. To enter into any agreements with any Government or authorities and to obtain from them any or all rights, connections, licence, orders and privileges that may seem conducive to the company's objects or any of the and to obtain or in any way assist in obtaining any legislative decree, provincial orders or other necessary authority for enabling this or any other allied company to carry any of its objects into effect, or for effecting any modification of this or any other company's constitutions to procure their or any such other company to be legalized or registered if necessary in accordance with the laws of any province or state, in which it may prepare to carry on operations.

22. To remunerated Directors, Managing Director, staffs and employees of the company or others out of or in proportion to the returns of the profit of the company as the Company may deem fit.

23. To adopt such means of making known the products of the company as may seem expedient and in particular by advertising in the press, by circulars bills, posters etc. by purchase and exhibition of works of art of interest, by publication of books and periodicals and by granting prizes, rewards and donations but not indented to serve any political party or cause,.

24. To pay all or any costs, charges and expenses, preliminary and incidental to the promotion, formation and registration of the company and to pay salaries, wages, and other expenses for the establishment of the company.

C. **THE OTHER OBJECTS FOR WHICH THE COMPANY IS ESTABLISHED ARE:-**

1. To purchase acquire, exchange, hire, take on lease, buy, sell, construct, build, develop, promote, execute, undertake, contract, maintain, manage, run, model, remodel, erect, demolish, alter, furnish, improve, enlarge, pulling down, decorate or otherwise, deals in all kind of lands, building, commercial complexes, residential complexes, housing complexes, office building, houses, flats, apartments, hospitals, shopping mall, hotels, results, restaurants, cineplexes, multiplexes, amusement parks, golf course, film city, clubs, educational institute, place of worships, reading rooms, library, dairy farms, agro projects and all other kinds of immovable properties.

2. To carry on the business of construction, development, creation, expansion, design, modernization, management and maintenance of infrastructure projects & facilities and all types of logistic support and tools including but not limited to power (both conventional and non-conventional),information technology, roads highways, bridges, fly-overs, airports, ports, railways, environmental engineering and management, sanitation, water, waterways, sewerages disposal, industrial estates, townships, industrial parks, foods parks, bio-technology parks or any other facility of similar nature and to act as consultant, advisor agent to mobilize resources and to arrange both private and/or government sector participations for development of infrastructure projects, joint venture, foreign collaboration projects and to undertake projects on build- operate-transfer (BOT) basis.

3. To carry on the business as manufacturing and trading, Brokers, Suppliers, Marketers, Agents, distributors, Stockiest, Traders, Repairs, Importers, Exporters of Billette casting, Forging Steel, Pencil Ingot, Casting Pipe, Sponge Iron, Casting of steel Ingots, Ferro-Alloys steel, Cast Iron materials, Ferrous and Non-Ferrous Metal, Graded Steel, Special Graded Alloys Steel, Steel Pipe Mill, Foundry, Converters, Processors, Assemblers, Fabricators, Casting, Sponge Iron, Ingots, Plant, Billet, Blooms, Slabs Sheets, Rods, Squares Poles, Rails, wheels, Rollers, Strips, Rounds, Bars, Plates, Angles, Channels, Wires, Auto Parts, Components, Pipes, Tubes, Tubular Structures, Towers, Tools and Implements, Machine Parts, Hardware, Utensils, Containers, scraps, by products, Waste materials and all other Engineering and Metal Goods, Packers, Stockiest and Distributors, of and in all kinds of Iron and Steel Scraps, Melting Scraps, Press Bundle Scrap, G.I. Scrap, C. I. Ingot Mould and Bottom Plates Scraps, all kind of Skull and Ladle Scraps, Manganese Steel Scrap, other Ferrous and Non-Ferrous Scrap, all kinds of Iron and Steel Materials, ferro silicon, zincronium, ferro aluminium, pig iron and steel ferro silicon, high carbon ferro chrome and other by-products, iron, wrought iron steel alloys of any description including all types of Fencing Materials, Hand Carts iron, Stores Iron Doors, flasks, Window, Grills, Ornamental Grills, Agriculture Implements and to set up and/or establish welding shop, machine shop, Steel Rolling Mills, Cold Rolling Mills, Mini Steel Plants, Alloys Steel Plants, Alloys Casting Plant and to construct, install and erect necessary plants for the above purpose.

4. To carry, undertake, run, manage, establish, own, operate, implement, exhibit, arrange, manufacture, develop, consult, advise, contract, improve or otherwise deal in in-house center of software solutions and developer, technology developer, e-commerce, information technology, internet, internet and telecommunication network, e-security, e-education, training and development of software professional and other human resources, Entrepreneur Resources Planning, soft skill development, computer training institutes, development of entertainment software on film and allied services, multimedia services, SAP support , business process outsourcing on communication network, call center services, B.P.O. conventional and non-conventional energy, medical transcriptions, data processing, planning and processing of engineering specialization in hardware, software, and selling of Computer and computer peripherals.

5. To carry on the business as timber merchants, saw-mill proprietors and timber growers and to buy, sell, grow, prepare for market, manipulate, import, export and deal in timber and wood of all kinds and to manufacture and deal in articles of all kinds in the manufacture of which timber or wood is used, to buy, clear, plant and work timber estates.

6. To carry on the business of manufacturers of cement, pulp, paper, boards types, tubes, tyre-cord sheet, vehicles, tractors and other automobiles parts and the business of buyers, sellers, dealers, exporters of any goods and to transact all manufacturing or treating and preparing processes and mercantile business and purchase and vend raw material and manufactured articles, in which the Company is authorized to carry on business.

7. To carry on any business relating to the winning and working of minerals, the production and working of metals, coal, bricks, clay, limestone and other substances and the production, manufacture and preparation of any other material, to carry on any engineering and manufacturing business or undertake any contracts and to undertake and execute and contracts for works involving the supply or use of any machinery and to carry out any ancillary or other work comprised in such contracts.

8. To carry on the business of manufacturers, importers, exporters buyers, sellers, distributors and dealers in oxygen, acetylene and other industrial gases, gas cylinders, chemicals organic and inorganic caustic soda, other chemical products, manures, fertilizers and manufacturers and molders of plastic and plastic products and generally to manufacture and deal in such commodities and goods capable of being manufactured and dealt with by the Company.

9. To carry on the business of iron, founders, civil and mechanical engineers and manufactures of agricultural and manufacturers of agricultural, industrial and other machinery and tool bits, machine tool maker, bras founders, metal workers, boiler makes of locomotive and engines of every description, millwright, machinists, iron and steel converters, smiths, wood workers, builders, painters, metallurgists, electrical manufacture, repaid, convert, alter import, export, let on hire and deal in machinery, ferrous and non-ferrous metals implements, dressers, pre heaters, burners, steel biles, furnace oil fired or otherwise, welding rods, fluxes, welding safety equipments, air compressors rolling stock and hardware of all kinds, nuts, bolts, hooks, pins, panels, iron roads and windows, grills, truck and bus body building, pressing and punching molding carpentry machine tools, tip wagons railway points and crossing railway signals, wire rope, coir rope, jute rope, canvas tarpaulins, small machineries, hamiltors poles and pole fixtures porcelains, flour mills, oil mills, dal mills and machineries for flour mills (chakki),oil mills, jute mills, machineries and spares, looms, leather ruling machine, drilling machine, general fillings accessories and appliances.

10. To carry on the business of metal founders, manufacturers of aluminium, brass, copper, lead, silver and metal sheets, wires, rods, squares and plates of all sizes and description, aluminium, lead and other metal foils and utensils lead and brass pipes, sheets, ingots and circles.

11. To carry on the business of spinners, weavers, manufacturers, balers and preserves of jute, jute cuttings, jute rejections, hemp, cotton, cotton textiles, handicrafts, silk, man made fibers, readymade garments and any other fibers (natural and chemical) materials and the cultivations thereof and the business of buyers, sellers, agents, factors, importers, exporters, merchants, financiers and dealers of lute, cuttings, jute rejections, jute manufacturers, hemp, cotton, cotton textiles, all kinds and products of manmade fibers, manmade fiber yarns, man made fibers cords and manmade fiber fabrics mixed or without mixing materials like woolen, cotton, metallic or any other fibers of vegetables, mineral or animal origin by any process using petrochemicals of all descriptions and any other seeds and produce and of goods or merchandise made thereof and to transact all manufacturing or cutting and preparing process and mercantile business that may be necessary or expedient and to purchase and vend raw material and manufactured articles in which the Company is authorized to carry on business.

12. To establish, acquire, maintain and carry on the business of growers, cultivators, producers, planters, blenders, buyers, sellers, exporters, importers and dealers in tea, coffee, cinchona, rubber, jute, jute manufacturers, cereals, oilseeds, cotton, cotton textiles, sugarcane, vegetable products, chemicals, plants and all other things produce, commodities and merchandise in which the Company is authorized to carry on business.

13. To carry on investment business and to invest in, acquire, hold and to deal in shares, stocks, debentures, bonds, obligations and securities issued or guaranteed by any company constituted or carry in on business in India or elsewhere and debentures stocks, bonds, obligations and securities issued or guaranteed by any Government State dominion, sovereign ruler, commissioner, public body or authority supreme, municipal, local or otherwise whether in India or elsewhere, and to carry or otherwise dispose of exchange, transfer of alienate any of the investments of the company and to do the money lending business, receive money on deposit or loan on such terms and conditions as the company may approve, provided the company shall not do any banking business as defined under Banking Regulations Act,1949.

14 To carry on the business as merchants, traders, commission agents, buying and selling agents, brokers adagios, importers, buyers, sellers, exporters, dealers and to import, export, buy, sell, barter, exchange or otherwise trade and deal in goods, produce, articles and merchandise of any kind whatsoever in India or any where in the world.

15 To carry on the business of ship builders, ship breakers, ship brokers, ship agents, ship underwriters, stevedores, freight and chartering brokers, marine surveyors and operating, repairing, managing services, salvage operation of ships, vessels, tugs, barges, lighters, fishing boats, dredgers, offshore rigs, projections, platforms and any other equipments connected with off shore activities and to establish, maintain and operate shipping business including shipping services and to own, construct, purchase, charter, operate, manage, hire or otherwise acquire, sell, exchange, let or otherwise deal with or trade in steam, sailing, motor and other ships, travelers, drifters, tugs, country crafts, water crafts, fishing boats, dredgers, boats and vessels, hover crafts, of every description, propelled or worked or capable of being propelled or worked by steam, electricity, petrol, oil, gas or any other motive, power producing substance with all equipments and to carry on business of carriers by land and air, aircraft owner, repairers of ship, aircraft and other transport vehicles.

16 To act as manufacturers, producers, processors, refiners, exporters, distillers, blenders, purifiers, transporters, exchangers, suppliers, stockiest, buyers, sellers and otherwise dealers of petroleum and petrochemicals including petroleum crude and chemicals, lubricants, fuel, gas, oil, perfumed and all other types of all and any bye-products and derivatives thereof including process of petroleum crude to produce Liquefied Petroleum Gas(LPG), Naphtha, Gasoline(MS), Kerosene(SKO), Aviation Turbine Fuel (ATF), high Speed Diesel(HSD),Fuel Oil (FO), Bitumen, Sulphur, Reduced Crude Oil (RCO), feed stock for lube refinery and Carbon Black Fuel Stock (CBFS) and extraction of oil by mechanical, electrical and chemical means from all kinds and/or types of commodities and to undertake the business of manufacturers, importers, exporters, buyers, establishers, stockiest, distributors, consultants, sellers and dealers of all kinds of gas cylinders, pipes, machineries and plants thereof.

17 To carry on in India or elsewhere the business of manufacturing, processing, designing, assembling, developing, fabricating, operating improving, importing, exporting, distributing, buying, selling and dealing in telecommunication equipments, all types of telegraphic and telephonic equipments, telephone exchanges, public and private telephone exchange system (automatic and manual) with or without exchange service trunk or toll exchanges, frequency signaling terms, telephone repeater equipments, voice teleprinter, railway telephone systems, (multi channel), cordless telephone, voice frequency teleprinter, railway telephonic systems (multi channel) cordless telephone, voice frequency sets, microphones, head phones ear phones and head receivers, sound equipments, broadcasting equipments, all types of speech input and output equipments, disc-recording and reproducing equipments, autosound equipments, cassette products, radio and television transmitting and receiving apparatus, all video systems, solar communications and all types of radio broadcasting transmitters, satellite antenna receiving systems, cable T.V. and other audio video systems, solar communications, and all types of telecommunication cable, software, wires, conductors, transferors rectifiers, switchgears, panels and associated apparatus, devices, equipments and their components and accessories.

IV The liability of the members is limited

V. "The Share Capital of the Company is Rs. 45,00,00,000/-(Rupees Forty Five Crores Only) divided into 45,00,00,000 (Forty Five Crores) Equity Shares of Rs. 1/- (Rupees One) each."

MARSONS LIMITED

DIRECTOR

We, the several persons, whose names and address are subscribed below are desirous of being formed into a Company in pursuance of this Memorandum of Association and we respectively agree to take the number of shares in the capital of the company set opposite to our respective names.

Names, Address, Signatures, Descriptions and occupations of subscribers	Number of Shares taken by each subscriber	Names, address, Descriptions and occupation of witness
M.C. JAIN Son of Shri Chetan Pradesh Jain 17, May Fair Road, Calcutta-19 (Business)	100	S. K. JAIN Son of Shri Mahal Chand Saraogi, 13, Mukhram Kanoria Road, Howrah. Service
G.C.KOTIA Son of Shri Chetan Pradesh Jain 17, May Fair Road Calcutta - 19 (Business)	100	
K. K. JAIN Son of Shri Swaroop Chand Jain 17, May Fair Road Calcutta - 19 (Business)	100	
Total	300	

(Three Hundred)

Calcutta, Dated this 27th day of July 1976

THE COMPANIES ACT, 1956

COMPANY LIMITED BY SHARES

ARTICLES OF ASSOCIATION

OF

MARSONS LIMITED

1. Regulations contained in Table "A" in the first schedule to the Companies act, 1956 shall apply so far, and so far only as they are not inconsistent with any of the provisions contained in these Regulations.

2. (a) Unless the contest otherwise requires words and expressions contained in these Articles shall bear the same meaning as the Act or any modification thereof in force.

   (b) The marginal notes hereto are inserted for convenience and shall not affect the construction or interpretation of any of the provisions under these Regulations,

3. The following words and expression used in these Articles shall have the meaning as stated against each unless inconsistent with the subject:

   (a) "The Company" means MARSONS LIMITED

   (b) "The Act" means the Companies Act, 1956, as amended up-to-date or any statutory modification thereof or other Act or Acts for the time being in force governing the Companies limited by shares.

   (c) "The Articles" means these Articles of Association.

   (d) "The Directors" means the directors for the time being of the Company or as the case may be, the Directors assembled at a Board meeting.

   (e) "The Office" means the Registered Office for the time being of the Company.

   (f) "The Register" means the Register of Members to be kept pursuant to Section 150 of the Act.

   (g) " The Registrar" means the Registrar of Companies of the State in which the Registered Office;of the Company is situated.

   (h) "Months", mean calender months.

   (i) "Year" & "Financial Year" - shall have the meaning assigned thereto by Section 2 (17) of the Act.

   (j) "Seal" means the Common Seal for the time being of the Company.

   (k) "In writing" and "Written" include printing, lithography and other modes of representing or reproducing words in a visible form.

   (l) Word importing the singular number only include the plural number and vice-versa.

   (m) Word importing the masculine gender include the feminine gender.

   (n) Words importing persons include corporation, firm as well as individuals.

   (o) "The Board" or the "Board of Directors" means a mee ' ting of the Directors duly called and constituted or, as the case may be, the directors assembled at a Board, or the requisite number of directors entitled to pass a circular resolution in accordance with these Articles, or the Directors of the Company collectively.

   (p) "Member" means the holder of shares in the Company but will not include a bearer of Share-Warrant.

SHARE CAPITAL AND VARIATION OF RIGHT

Capital

4. The Authorised Share Capital of the Company is such as provided in the Memorandum of Association of the Company and with the approval of the Company in General meeting be increased or reduced in accordance with the regulations of the Company and legislative provisions for the time being in force in this behalf and with power to divide the shares in the Capital for the time being into Equity Share Capital and Preference Share Capital.

5. Subject to the provisions of Section 80, any preference shares may, with the sanction of an ordinary resolution, be issued on the terms that they are, or at the option of the company are liable, to be redeemed on such terms and in such manner as the company before the issue of the shares may, by special resolution, determine.

Shares under the control of the Directors, Power to issue share at premium or discount

6. The rights conferred upon the holders of the shares of any class issued with preferred or other rights shall not, unless otherwise expressly provided by the terms of issue of the share of that class, be deemed to be varied by the creation of issue of further shares ranking pari passu therewith.

7. Subject to the provisions of the Act and these articles, the shares in the capital of the Company for the time being (including any shares forming part of any increased capital of the Company) shall be under the control of the Directors who may issue, allot or otherwise dispose of the same or any of them to such persons in such proportions and on such terms and conditions and either (subject to the provision of Section 79 of the Act) at a discount and at such times as they may from time to time think fit ' and proper, and with full power, subject to the sanction of the Company in General Meeting, to give to any person the option to call for or be allotted shares of any class of the Company either at par or a premium or subject to as aforesaid at a discount, such option being exercisable at such times and for such consideration as the Directors think fit.

8. Subject to the provisions of the Act and these Articles, the Directors may allot and issue shares in the capital of the Company on payment or part payment for any property or assets of any kind whatsoever sold or transferred, good or machinery supplied or for services rendered to the Company whether in or about the formation or promotion of the Company or the conduct of its business and any shares which may be so allotted may be issued as fully paid up or partly paid up otherwise than in cash, and if so issued, shall be deemed to be fully paid up or partly paid up shares as aforesaid.

Directors may allot shares as fully paid up.

9. If at any time the share capital is divided into different classes of shares, the rights attached to any class (unless otherwise provided by the terms of issue of the shares of that class) may subject to the provisions of section 106 and 107, and whether or not the Company is being would up, be varied with the consent in writing of the holders of three fourths of the issued shares of that class or with the sanction of a special resolution passed at a separate meeting of the holder of the shares of that class.

Nomination of Shares

9A. (i) **Nomination of shares**

(a) Notwithstanding anything contained in these Articles, every holder of shares in or holders of Debentures of the Company may, at any time nominate, in the prescribed manner underthe provisions of Sections 109A and 109B of the Act, a person to whom his shares in or Debentures of the Company shall vest in the event of death.

(b) Where the Shares in or Debentures of the Company are held by more than one person jointly, the joint holders may together nominate, in the prescribed manner under Section 109A of theAct, a person to whom all the rights in the shares in or Debentures of the Company shall vest in the event of death of all the joint holders.

(c) Notwithtanding anything contained in any other law for the time being in force or in any disposition, whether testamentary or otherwise, in respect of such shares in or Debentures of the Company, where a nomination made in the prescribed manner under section 109A of the Act, purports to confer on any person the right to vest the shares in or Debentures of the Company, the nominee shall, on the death of the Shareholder or holder of Debentures of the Company, or as the case may be, on the death of the joint holders, become entitled to all the rights in, the Shares in or Debentures of the Company, or as the case may be, all the joint holders, in relation to such Shares in or Debentures of the Company to the exclusion of all other persons, unless the nomination is varied or cancelled in the prescribed manner under Section 109A of the Act.

(d) Where the nominee is a minor, it shall be lawful for theholder of shares or holder of Debentures, to make the nomination to appoint, in the prescribed manner under Section 109A of the Act, any person tobecome entitled to shares in or Debentures of the Company, in the event of his death, during the minority.

9B. (ii) **Transmission of Shares**

(a) Any person who becomes a nominee by virtue of the provisions of Section 109A of the Act, upon the production of such evidence as may required by the Board and subject to as hereinafter provided, elect either

(i) to be registered himself as holder or the Shares or Debentures as the case may be

(ii) to make such transfer of the share or Debentures as the case may be as the deceased shareholder or Debentures holders could have made.

(b) If the person being a nominee, so becoming entitled elects to be registered as holder of the Shares or Debentures himself, as the case may be, he shall deliver or send to the Company a Notice in writing signed by him stating that he so elects and such notice shallbe accompanied with the death certificate of the deceased shareholder or Debenture holder as the case may be.

(c) All the limitations, restrictions and provisions of the Act relating to the right to transfer and the registration of transfer of shares or Debentures shallbe applicable to any such notice or transfer as aforesaid as if the death of the Shareholder or Debenture holder had not occurred and the notice or transfer were a transfer signed by that share holder or Debenture holder.

(d) A person, being a nominee, becoming entitled to a shaare or Debenture by reason of the death of the holder shall be entitled to the same dividends and other advantages to which he would be entitled if he were the registrered holder of the share or Debenture except that he shallnot, before being registered a number in respect of his share or Debenture, be entitled in respect of it to exercise any right conferred by membership in relation to meetings of the Company.

Provided that the Board may, at any time, give notice requiring any such person to elect either tobe registered himself or to transfer the share or Debenture, and if the notice is not complied with within 90 days, the Board may thereafter withhold payment of all dividends, bonuses or other monies payable in respect of the Share or Debenture until the requirements of the notice have been complied with.

10. (a) The Company may exercise the powers of paying commissions conferred by section 76 provided that the rate, percentage or the amount of the commission paid or agreed to be paid shall be disclosed in the manner required by that section. **Commission & Brokerage.**

(b) The commission may be satisfied by payment in cash or allotment of fully or partly paid shares or partly in the one way and partly in the other.

(c) The Company may also on any issue of shares pay such brokerage as may be lawful.

11. With the previous authority of the Company in general meeting and sanction of the Court and upon otherwise complying with Section 79 of the Act, the Board may issue at a discount shares of a class already issued. **Shares at a discount.**

12. Except as required by law no person shall be recognised by the Company as holding any share upon any trust and the company recognised shall not be bound by or be compelled in any way in recognising (even when having notice thereof) any equitable, contingent, future or partial interest in any share or any interest in any fractional part of a share or (except only as by these regulations or by law otherwise provided) any other rights in respect of anyshare except an absolute right to the entirely thereof in the registered share holder. **Any Trust not recognised.**

13. Share may be registered in the name of any person, or Company. Not more than three persons shall be registered as Joint holders of any share. **Who may be registered.**

14. Anytwo or more joint Allottees of a Share, forthe purpose of this Article be treated as a single member, and the certificate of any share, which may be subject of joint ownership, may be delivered to the first named person on behalf of all of them. Further as regards receipts of dividends or Bonus or service of notice and or any other matter connected with the company, except voting at meeting, and the transfer of the shares, first named person shall be deemed to be sole holder there of but the joint holders of a share shall be severally as well as jointly liable for the payment of all installments and calls due in respect of such share and for all incidents thereof according to the Company's regulations. **Joint holders.**

FINANCIAL INSTRUMENT

15. (a) The Company may issue such financial instruments as may be deemed fit and necessary such as debenture either fully convertible, partly convertible or non convertible cumulative

convertible preferance shares, debenture stock, bonds, secured Premium Notes orother securities orsuch terms and condition regarding securities, redemption, conversion, interest as may be mentioned in the offer.

(b) Any debentures (Convertible or non Convertible) debenture stock bonds, Cumulative Convertible preference shares, secured premium notes or other securities shall be under the control of directors who may issue them upon such terms and conditions and in such manner and for such consideration as they shall consider to be for the benefit of the company "Provided that convertible bonds, debentures, debenture stock or other securities so issued or to be issued by the company to persons other than the members of the company on a pro-rata basis with the right to allotment of or conversion into shares shall not be issued except with the sanction of the company in a general meeting".

CERTIFICATES

16. (a) Subject to the provision of Section 113 of the Act, every person whose name is entered as a member in the Register of Member shall be entitled to receive share certificate within two months after allotment and within one months after the application for the registration of transfer is made as per requirements.

(b) Every certificate shall be under the Seal of the Company and shall specify the shares to which it relates and the amount paid up thereon.

(c) In respect of any share or shares held jointly by several persons, the Company shall not be bound to issue more than one Certificate and delivery of a Certificate to one of the several joint holder shall be sufficient delivery to all such holders.

17) If a Share Certificate is defaced, lost or destroyed, it may be renewed on:

(a) On such terms as to evidence and indemnity and payment of out of pocket expenses incurred by the Company in investigating evidence as the Board may think fit.

(b) For issue of, duplicate Certificate in replacement of old, descript or worn out Certificate or certificates where the pages on the reverse have been fully used, the Company will not charge any fee.

LIEN

18. The Company shall have first and paramount lien upon all the shares (other than fully paid-up shares) registered in the name of each member (whether solely orjointly with others) upon the proceeds of sale thereof for all moneys (whether presently payable or not) called or payable at a fixed time in respect of such shares and no equitable interest in any share shall be created except upon the footing and condition that this article will have full effect. Such lien shall extend to all dividends and bonuses from time to time declared in respect of such shares Unless otherwise agreed the registration of a transfer of shares shall operate as a waiver of the Company's lien if any, on such shares. The directors may at any time declare any shares wholly or in part to be exempt from the provisions of this clause.

19. The Company shall sell in such manner as the Board thinks fit any shares on which the Company has a lien provided that no sale shall be made -

(a) Unless the same in respect of which the lien exists is presently payable, or

(b) Until the expiration of fourteen days after a notice in writing stating and demanding payment of such part of the amount in respect of which the lien exists as is presently payable, has been given to the registered holder for the time being of the share or the person entitled there to by reason of his death or insolvency.

20. (a) To give effect to any such sale, the Board may authorise some person to transfer the shares sold to the purchaser thereof.

(b) The purchaser shall be registered as the holder of the shares comprised in any such transfer.

(c) The purchaser shall not be bound to see to the application of the purchase money, nor shall his title to the shares be affected by any irregularity or invalidity in the proceedings in reference to the sale.

21. (a) The proceeds of the Sale shall be received by the Company and applied in payment of such part of the amount in respect of which the lien exists and is presently payable.

(b) The residue, if any, shall subject to a like lien for sums not presently payable as existed upon the shares before the sale, be paid to the person entitled to the shares at the date of the sale.

CALL ON SHARES

22. (a) The Board may from time to time made calls upon the members in respect of any moneys unpaid on their shares (whether on account of the nominal value of the shares or by way or premium) and not by the conditions of allotment thereof made payable at fixed times.

(b) Each member shall subject to receiving at least fourteen days notice specifying the time or times and place of payment, pay to the Company, at the time or times and place so specified, the amount called on his shares.

(c) A call may be revoked or postponed at the discretion of the Board.

23) A call shall be deemed to have been made at the time when the resolution of the Board authorising the call as passed any may be required to be paid by installment.

24) The joint holders of a share shall be jointly and severally liable to pay all calls in respect thereof.

25) If a sum called in respect of a share is not paid before or on the day appointed for payment thereof, the person from whom the sum is due andlor payable shall pay interest thereon from the day appointed for payment thereof to the time actual payment at such rate as the board may determine. The Board may at its sole discretion waive such interest wholly or partly.

26) (a) Any sum which by the terms of issue becomes payable on allotment or at any fixed date or by instalment whether on account of the nominal value of the share or by way of premium, shall for the purpose of these regulations be deemed to be a call duly made and be payable on the date on which by the terms of issue it becomes payable or on the data so fixed.

(b) In case of non payment of such sum, all the relevant provisions of these regulations as to payment of interest and expenses, forfeiture or otherwise shall apply as if such sum has become payable by virtue of a call duly made and notified.

26A. Any amount paid up in advance of calls on any share may carry interest but shall not entitle to the holders of the share to participate in respectthereof in a dividend subsequently declared.

THE BOARD

27. (a) The Board may, if it thinks fit, receive from any member willing to advance the same, all or any part of the moneys uncalled and unpaid upon shares held by him, and

(b) Upon all or any of the moneys so advanced, the Companynmay pay interest at such rate as may be agreed upon by the Board and the member making such advance. The Board may at any time repay such amount of advance.

(c) No member paying any sum in advance shall be entitled to participate in profit or dividend or to voting rights in respect of the moneys so paid by him until the same would, but for such payment, became presently payable.

TRANSFER OF SHARES

28. (a) The instrument of transfer of any share in the Company shall be executed by or on behalf of both the transferor and transferee.

(b) Subject to provisions of Sec. 206A of the Act the transferor s' ~l be deemed to remain a holder of the share until the name of the transferee is entered in the Register of Members of the Company in respect thereof.

29. Subject to the provision of Sec. 108 of theAct, every instruments of transfer of share shall be in the Form No. 7-B stated in Table A of the Act or in such other form as may be prescribed.

30. The Company shall not register transfer of shares unless proper instrument of transfer duly stamped and executed both by or on behalf of the transferor and transferee is submitted to the Company with the required share certificate or if the certificate was not issued till

then, by allotment letter. However, if the Board is satisfied that the instrument of transfer duly signed by the transferor (share holder) was lost, it may register the transfer on such terms as to indemnity as the Board may deem fit at its discretion.

Directors may refuse to register transfer.

(a) Subject to the Provisions of Section 111 of the Act or any statutory modification of the said provisions for the time being in force, the Directors may, at their own absolute and uncontrolled discretion, decline to register or acknowledge any transfer of shares and in particular may so decline in any case in which the Company has a lien upon the shares or any of them or whilst any moneys in respect of the shares desired to be transferred or any of them remain unpaid or unless the transferee is approved by the Directors and such refusal shall not be affected by the factthatthe proposed transferee is already a member; provided that registration of a transfer shall not be refused on the ground of the transferor being either alone orjointly with any other person or persons is indebted to the Company on any account whatsoever except lien.. The registration of a transfer shall be conclusive evidence of the approval by the Directors of the transferee.

Notice of refusal tobe given to transferor and transferee

(b) If the Company refuses to register the transfer of any Notice of refusal share or transmission of any right therein, the Company shall within one months from the date of which the instrument of transfer or transmission was lodged with the Company send notice of refusal giving reasons for such refusal to the transferee and the transferor or to the person giving intimation of the transmission, as. the case may be, and thereupon the provisions of Section 111 of the Act or any statutory modification the said provisions for the time being in force shall apply.

31. Subjecttothe provisions of Section 154 of the Act, the Company ,may close its Register of Members and during that period the Company shall not register any transfer of shares.

TRANSMISSION OF SHARES

32. (a) On the death of a member, the survivor/s where the member was a joint holder and his legal representatives where he was a sole holder shall be the only persons recognised by the Company as having any title to his interest in the shares.

b) Nothing in clause (i) shall release the estate of a deceased joint holder from any liability in respect of any share which had been jointly held by him with other persons.

33. Any person becoming entitled to a share in consequence of the death or insolvency of a member may upon such evidence being produced as may from time to time be required by the Board and subject hereinafter provided elect either-

(a) to be registered himself as holder of the share or

(b) to make such transfer of the share as the deceased or insolvent memberwould have transferred the share before his death or insolvency.

34. (a) If the person so becoming entitled shall elect to be registered as holder of the share himself, he shall deliver orsend to the Company a notice in writing signed by him stating that he so elects.

(b) If the person aforesaid shall elect to transfer the share, he shall testify his election by executing an instruments of transfer of the share.

35. All the limitations, restrictions and provisions of these regulations relating to the right to transfer and the registration of transfer.of shares shall be applicable to any such notice or transfer as aforesaid as if the death or insolvency of the member had not occurred and the notice of transfer were a transfer signed by that member.

36. A person becoming entitled to a share by reason of the death or insolvency of the holder shall be entitled to the same dividends and other advantages to which he would be entitled if he was the registered holder of the share except that he shall not, before being registered as a member in respect of the share, be entitled in respect of it to exercise any right conferred by membership in relation to meetings of the Company:

Provided that the Board may at any time give notice requiring any such person to elect either to be registered himself or to transfer the share and if the notice is not complied with within ninety days, the Board may thereafter withhold payment of all dividends, bonuses or other moneys payable in respect of the share until the requirements of the notice have been complied with.

37. The executor or administrator of a deceased member or holder of a Succession Certificate (not being one of several Joint holders) shall be the only persons recognised by the Company as holding/having any title to his shares. The Board will not be bound to recognise any executor or administerwithout production of required probate or letter of administration,

but may, at its sole discretion dispense with the production of the same upon such terms as to indemnity or otherwise as the Board may deem fit.

38. The Board shall have the same right to refuse to register transmission of any share in favor of the person/s entitled to its as if he / they were the transferee/s named in any ordinary transfer.

39. The Company shall incur no liability or responsibility whatever in consequence of registering or giving effect to any transfer of shares made by any apparent legal owner thereof (as shown in the Register of Members), notwithstanding that the Company may have notice of any equitable right, title or interest or notice prohibiting registration of transfer, but the Company shall, nevertheless, be at liberty to regard and attend to any such notice and give effect therein, if the Directors so think fit.

40. Where any instrument of transfer of shares has been delivered to the Company for registration of the transfer of such shares and the same have not been registered by the Company it shall, not withstanding any other provision of the Act, transfer the dividend, if any, in respect of such shares to the special account as per Section 205A of the Act unless the registered holder thereof give intimation in writing to pay the dividend to the transferee specified in such instrument.

FORFEITURE OF SHARES

41. If a member fails to pay any call, or instalment of a c all, on the day appointed for payment thereof, the Board may, at any time thereafter during such time as any part of the Call or instalment remains unpaid, serve a notice on him requiring payment of so much of the call or instalment as is unpaid together with any interest which may have accrued.

42. The notice aforesaid Shall :-

(a) Name a further day (not being earlier than the expiry of fourteen days from the date of service of the notice) on or before which the payment required by the notice is to be made, and

(b) State that, in the event of non-payment on or before the day so named, the shares in respect of which the call was made will be liable to be forfeited.

43. If the requirements of any such notice as aforesaid are not complied with, any share in respect of which the notice has been given may at any time thereafter before the payment required by the notice has been made be forefeited by a resolution of the Board to that effect.

44. (a) A forfeited share maybe sold or otherwise disposed of on such terms and in such manner as the Board thinks fit.

(b) At any time before sale or disposal as aforesaid, the Board may annul (cancel) the forfeiture on such terms as it thinks fit.

45. (a) A person whose shares have been forfeited shall cease to be a member in respect of the forfeited shares, but shall notwithstanding the forfeiture remain liable to pay all the moneys which at the date of forfeiture were presently payable by him to the Company in respect of the share.

(b) The liability of such person shall cease if and when the company shall have received payment in full of all such moneys in respect of the shares.

46. (a) A duly verified declaration in writing that the declarant is a director, the manager or the secretary of the Company and that a share in the Company has been forfeited on a date stated in the declaration, shall be conclusive evidence of the facts therein stated as against all persons claiming to be entitled to the shares.

(b) The t ransferee shall thereupon be registered as the holder of the share.

47. The forfeiture of a share shall involve the extinction of all interest in, and also of all claims and demands against the Company in respect of the share, and all other rights incidental to the share, except only such of those rights as these Articles are expressly saved.

48. The provisions of these resolution as to forfeiture shall apply in the case of non-payment of any sum which by the terms of issue of a share becomes payable at a fixed time, whether on account of the nominal value of the share or for paying of premium, as if the same had been payable by virtue of a call duly made and notified.

SURRENDER OF SHARES

49. The Directors may at any time, subject to the provisions of the Act, accept the surrender of any shares from or by any member on such terms as the Directors think fit.

SHAREWARRANTS

50. Subject to the provisions of Section 114 & 115 of the Act the Company may issue, Share Warrants in such manner and on such terms and conditions as the Board may deem fit. In case of such issues clauses 40 to 43 of Table A Schedule 1 of the Act will apply.

CONVERSON OF SHARES INTO STOCK

51. The Company may be Ordinary Resolution -

(a) Convent any paid up shares into stock and

(b) Reconvert any stock into paid up shares of any denomination-

52. The holders of stock may transfer the same or any part thereof in the same manner as and subject to the same regulations under which the shares from which the stock arose might before the conversion have been transferred or as near thereto as circumstances admit:

Provided that the Board may from time to time fix the minimum amount of stock transferable so however that such minimum shall not exceed the nominal amount of the shares from which the stock arose.

53. The holders of stock shall, according to the amount of stock held by them, have the same right, privileges and advantages as regards dividends, voting at meetings of the Company, and other matter, if they held the shares from which the stock arose, but no such privilege or advantage (except participation in the dividends and profits of the Company and in the assets on winding up) shall be conferred by an amount of stock which would not, if existing in shares, have conferred that privilege or advantage.

54. Such of the regulation of the Company (other than those relating to share warrants) as are applicable to paid-up shares shall apply to stock and the words "Share" and "Share Holdee' in those regulations shall include "Stock" and "Stock Holder" respectively.

ALTERATION OF CAPITAL

55. The Company may from time to time by ordinary resolution increase the share capital by such sum, to be divided into shares of such amount, as may be specified in the resolution.

56. The Company may by Ordinary Resolution :-

(a) Consolidate and divide all or any of its share capital into shares of larger amount than its existing shares :

(b) Sub-divide its existing shares or any of them into shares of smaller amount than is fixed by the Memorandum subject nevertheless to the provisions of clause (d) of subsection (i) of Sec. 94 of the Act:

57. The Company may subject to the provisions of Sections 78, 80, 100 to 105 of the Act by special resolution, reduce in any manner and with, and subject to, any incident authorised and consent required by law:-

(a) Its Share Capital;

(b) any Capital redemption reserve account, or

(c) any Share Premium account.

Buy Back of Shares.

57A. "Notwithstanding anything contained in any of the Articles of the Articles of Association of the Company, but subject to and in full compliance of the requirements of Sections 77A, 77AA and 77B of the Companies Act, 1956 or coresponding provisions of any re-enactment therof and any rules and regulations that may be prescribed by the Central Government, the Securities & Exchange Board of India (SEBI) or any other appropriate authority in this regard, the Company in a general meeting by a special resolution upon the recommendation of the Board of Directors of the Company subject to such limits, if any, may buy -back any part of the share capital of the Company fully paid-up on the date.

GENERAL MEETING

58. All General Meeting other than Annual General Meeting shall be called Extraordinary General meetings.

59. (a) The Board may whenever it thinks fit call on Extraordinary General Meeting.

(b) If at any time there are not within India directors capable of acting who are sufficient in number to form a quorum, any director, or any number of members who represent a majority in the Share Capital held by all of them or not less then one-tenth of such of the Share Capitals at that date carries right of voting in regard to the matter for which the meetings is to be convened, may call an Extraordinary General Meetings in the same manner as nearly as possible as that in which such a meeting may be called by the Board.

PROCEEDINGS AT GENERAL MEETINGS

60. (a) No business shall be transacted at any General Meeting unless a quorum of members is present at the time when the meeting proceeds to business.

(b) Five members present in person shall be a quorum.

61. The Chairman if any of the Board shall preside as Chairman at every General Meeting of the Company.

62. If there is no such Chairman or if he is not present within fifteen minutes after the time appointed for holding the meeting or is unwilling to act as Chairman of the meeting, the members present shall elect one of the directors present at the meeting to be Chairman.

63 If at, any meeting no director is willing to act as chairman or if no director is presentwithin fifteen minutes afterthe time appointed for holding the meeting, the members present shall choose one of their members to be Chairman of the meeting.

64. The Chairman may with the consent of members of any meeting at which quorum is present and shall if so decided by the meeting adjourn the meeting from time to time and from place to place.

(a) No business shall be transacted at any adjourned meeting other than the business left unfinished as the meeting from which the adjournment took place.

(b) When a meeting is adjourned for thirty days or more, notice of the adjourned meeting shall be given as in the case of an original meeting.

(c) Save as aforesaid, it shall not be necessary to give any notice of an adjournment or of the business to be transacted at an adjourned meeting.

65. In thecaseofan equality of votes whether on a show of hands or on a poll, the Chairman of the meetings at which the show of hands takes place or at which the poll is demanded shall be entitled to a second or casting vote.

66. Any business other than that upon-which a poll has been demanded may be proceeded with pending the taking of the poll.

VOTES OF MEMBERS

67. Subject to any rights or restriction for the time being attached to any class or classes of shares -

(a) On a show of hands, every member present in person shall have one vote.

(b) On a poll the voting rights of members shall be as laid down in Sec. 67 of the Act.

68. In the case of joint holders, the vote of any one of the joint holders, or if more than one joint holders be present at the meeting then person whose name stands first on the Register of Members who tenders a vote, whether in person or by proxy, shall be accepted to the exclusion of the votes of the otherjoint holders.

69. A member of unsound mind or in respect of whom an order has been made by any Court having jurisdiction in lunacy may vote whether on a show of hands or on a poll by his committee or other legal guardian and any such committee or guardian may on a poll vote by proxy.

70. No member shall be entitled to vote at any General Meeting unless all calls or other sums presently payable by him in respect of shares in the Company have been paid.

71. (a) No objection shall be raised to the qualification of any Vote except at the meeting or adjourned meeting at which the vote objected to is given or tendered, and every vote no disallowed at such meeting shall be valid for all purpose

(b) Any such objection made in due time shall be referred to the Chairman of the meeting whose decision shall be firs and conclusive.

72. The instrument appointing a proxy and the power of attorney o other authority, if any, under which it is signed or a notarially certified copy of that power or authority, shall be deposited a the Registered Office of the Company not less than 48 hours before the time for holding the meeting or adjourned meeting a which the person named in the instrument proposes to vote.

73. An instrument appointing a proxy shall be in either of the forms in Schedule IX to the Act or in a form as near thereto as circumstances admit.

74 A vote given in accordance with the terms of the instrument appointing proxy, shall be valid notwithstanding the previous death or insanity of the principal or revocation of the instrument or transfer of the share in respect of which proxy is given provided that no intimation in writing of such death, insanity, revocation or transfer shall have been received by the Company at its Office before the commencement of the meeting or adjourned meeting at which the proxy is used.

Resolution by postal Ballot

74A. The Company may pass resolution by postal ballot in the manner prescribed by Section 192A of the Companies Act, 1956 and such other applicable provisions of the ACt and any future amendments or re-enactments thereof, notwithstanding anything contained in the provision of the Act, the Company, being a listed Company, shall in the case of resolution relating to such business, as the Central Governmnent may, by notification, declare to be considered only by postal ballot, such resolution passed by means of a postal ballot instead of transacting the business in a general meeting of the Company.

BORROWING POWERS

75. (a) The Board may subject to the provisions of Sections 292, 293 & 370 of the Act, borrow moneys for the purpose of the Company with or without Security.

(b) Unless otherwise authorised by the Company in General meeting as required, the Board will borrow funds within the limits stated under Section 293(i) (d) of the Act,

DIRECTORS

76. Unless otherwise determined, the number of Directors shall not be less than three nor more than twelve.

77. **As on the date of adoption of these Articles, the following persons are the Directors of the Company :-**

1. **Shri Malook Chand Jain.**
2. **Shri Gyan Chand Kotia.**
3. **Shri Kamlesh Kumar Jain.**
4. **Shri Nikhilesh Kotia.**
5. **Shri Pravin Jain.**

78. (a) Not less than two thirds of the total number of directors shall be persons whose period of office is liable to determination by retirement of Directors by rotation.

(b) At every Annual General Meeting one third of such of the directors as are liable to retire by rotation, or if their number is not three or a multiple of three than the number nearest to one third shall retire form office, but the Managing Director if any, forthe time being shall not retire from the office by rotation or be accounted in determining the rotation of other Directors.

(c) Subject to the provisions of the Act and these Articles the Directors to retire by rotation at every Annual General Meeting shall be those who have been longest in office since their last appointment but as between persons who become Directors on the same day those who are to retire shall, in default of and subject to any agreement among themselves, be determined by lot. Subject to the provisions of the Act, a retiring Director shall retain office until the dissolution of the meeting at which his reappointment is decided or his successor

is appointed.

(d) A retiring Director shall be eligible for re-election.

(e) Subject to provisions of the Act, the Company at the General Meeting atwhich a Director retires, mayfill upthe vacated office by re-electingthe retiring Directoror electing other persons thereto, as the case may be.

79. (a) The Company shall subject to the provisions of the Act, and subject to the approval in General meeting be entitled to agree with any person, firm or corporation that it shall have the right to appoint its nominee on the Board of Directors of the Company upon such terms and conditions as the Company may deem fit. Such nominee(s) and the successors in office appointed under this Article shall be called Special Directors of the Company.

b) The Special Directors appointed under sub-article as above shall be entitled to hold office until requested to retire by the firm or corporation who may have appointed them and will not be bound to retire by rotation. As and whenever a special Director vacates office whether upon request as aforesaid or by death, resignation or otherwise, the . firm or corporation who appointed such Special Director may appoint any other Director in his place. The Special Director may at any time, by notice in said, a special Director shall be entitled to the same rights and privileges and be subject to the same obligation as any other Director of the Company.

80. **Directors Nominated by Financial Institution :**

The Company may agree with any financial institution or any authority or person or State that in consideration of any loan or financial assistance of any kind whatsoever which may be rendered by it to the Company, it shall till such time as the loan or financial assistance is outstanding have power to nominate lone or more directors on the Board of the Company, and to appoint other directors in his/their place in case of his/their removal, death or resignation. Such nominee directors shall not be required to retire by rotation.

81. **Appointment of Alternate Director:**

The Board of Directors of the Company may appoint Alternate Director to act for a Director (hereinafter called "The Original Director") during his absence for a period of not less than three months from the State in which the meetings of the Board are ordinarily held and such appointment shall have effect and such appointee, whilst he holds office as an Alternate Director shall be entitled to notice of meetings of the Directors and to attend and vote there at accordingly. An Alternate Director appointed under this Article shall vacate office if and when the Original Director returns to the said State, any provision in the Act or in these Articles for the automatic reappointment of retiring directors in default of another appointment shall apply to the Original Director and not to the Alternate Director.

82. If it is provided by any Trust Deed securing or otherwise in connection with any issue of debentures of the Company that any person or persons shall have power to nominate a Director of the Company, then in the case of any and every such issue of Debentures, the person or persons having such power may exercise such power form time to time and appoint a Director accordingly. Any Directors appointed be herein referred to as a Debenture Director. A Debenture Director maybe removed from office at any time by the person or persons in whom for the time being is vested the power under which the was appointed and another director'may be appointed in his place. A Debenture Director shall no be liable to retire by rotation. A Debenture Director shall not be bound to hold any qualification shares.

83. **Appointment of additional Director**

Subject to the provisions of Section 260 and other applicable provisions, if any, of the Act, the Directors shall have power at any time, and time to time, to appoint a person as an additional director. The additional director shall hold office only upto the date of next annual general meeting of the Company held after his appointment but shall be eligible for appointment as a directorbythe Company atthat meeting as perprovisions ofthe Act.

84. **Casual Vacancy**

Subject to the provisions of Sections 262 and 284(6) and other applicable provisions, if any, of the Act, any casual vacancy occurring in the office of a director whose period of office is liable to determination by retirement by rotation, may be filled up by the Directors but the person so chosen shall be subject to retirement at the same time as if he had become a director on the day on which the director in whose place he is appointed was last elected a director.

85. **Directors May Act Not with standing Vacancy**

The continuing Directors may act notwith standing any vacancy in the Board, but so that, subject to the provisions of the Act, if the number falls below the minimum above fixed, notwithstanding the absence of a quorum, the Directors may act only for the purpose of filling up vacancies or for summoning a general meeting of the Company.

Share Qualification 86. A Director shall not be required to hold any qualification shares in the Company.

87. The Directors may be paid any sitting fee for attending the meeting of Board of Directors or a Committee thereof.

88. Any Managing Director or whole time Director or part time Director will be entitled to receive such remuneration by way of salary, Commission, and perquisites/benefits as may be approved by the Board of Directors and members of the Company and confirmed by the Company law Board if so required as per Section 269 and other applicable provisions of the Act.

89. A director may be removed form his office before the expiry of the period as per provisions of Sections 284 of the Act.

90. The office of a Director in the Company shall become vacant on the happening of all or any of the events specified under Section 283 of the Act.

91. A Director of the Company who is in anyway, whether directly or indirectly concerned or interested in a contact, orarrangement entered into or a proposed contract or arrangement to be entered into by or on behalf of the Company, shall disclose the nature of his concern or interest at a meeting of the Board in the manner provided in Sec.299(2) of the Act: provided that it shall not be necessary for a Director to disclose his concern or interest in any such contract or arrangement where the concern or interest consist only in holding together with his co-directors in the aggregate not more than 2 percent of the paid up share capital in any Company. A general notice given to the Board by the Director to the effect that he is a director or member of a specified body corporate or member of a specified firm and is to be regarded as concerned or interest inany contract or arrangement which may after the date of the notice be entered into with that body corporate or firm shall be deemed to be a sufficient disclose of concerned or interested in relation to any contract or arrangement so made. Any such general notice shall expire at the end of the financial year in which it is given but may be renewed for a further period of one financial year by a fresh notice given in the last month of the financial year in which it would have otherwise expired. No such general notice and no renewal thereof shall be of effect unless either it is given at a meeting of the Board or the Director concerned takes reasonable steps to secure that it is brought up and read at the first meeting of the Board after it is given.

92. Save as stated under Section 300 of the Act, no director shall as a director, take any part in the discussion of or vote on any contract or arrangement entered into or to be entered into by or on behalf of the Company, if he is in any way, whether directly or indirectly concerned or interested in such contract or arrangement: nor shall, his presence count for the purpose of forming a quorum at the time at any such discussion or vote and if he does vote, his vote shall be void provided that the Board or any of number may vote on any contract of indemnity against loss which it or any one or more of its number suffer by reason of becoming or being sureties or surely for the Company provided however that nothing herein contained shall apply to :-

(a) any contract or indemnity against any loss which the directors or any of them may suffer or by reason of becoming or being sureties or a surety for the Company : or

(b) Any contractor arrangement entered into orto be entered into with a public company or a private company which is a subsidiary of a public company, in which the interest of the director consists solely in his being a director of such company and

(c) the holder of shares not more than the number or value requisite to qualify him for appointment as a director thereof he having been nominated as such director by the Company or in his being a member of the Company holding not more than two percent of the paid-up share capital.

93. The Company shall keep and maintain Register of Contracts Register of Directors, Register of Director's Share holding etc. as per Sections 301, 303, 307 and other applicable provisions of the Act.

94. A director may be or become director of any Company promoted by the Company or in

which it may be interested as a vendor shareholder or otherwise and no such director shall be accountable for any benefits received as director or shareholder of such company except as otherwise provided under Section 309, 314 and other applicable provisions, if any, of the Act.

MANAGEMENT

95. Subject to the provisions of Section 197A, 198, 268, 269, 309, 310,311, 316, 317 and other applicable provisions of the act and these Articles, Directors may appoint one or more of their body as Managing Director/and/or whole time Director/of the Company for such term not exceeding five years at a time and subject to such contract as they may think fit.

SECRETARY

96. The Directors may appoint a Secretary of the Company for such term, at such remuneration and upon such conditions as they thinks fit, any Secretary so appointed may be removed by the Board.

POWERS OF DIRECTORS

97. Subject to the provisions of the Act and these Articles, the management and control of the Company shall be vested in the Directors who shall be entitled to exercise all such powers of the Company and do all such acts and things as are not by the Act or any other law or by the Memorandum or the Articles of Association of the Company required to be exercised by the Company in General Meeting, as the Company is authorised to exercise and do and with the aforesaid regulations or other regulations as may be prescribed by the Company in General Meeting, but no regulations made by the company in General Meeting, shall invalidate any prior act of the Board which would have been valid if that regulation had not been made provided that in exercising any such power of doing any such act or thing, the Board shall be subject to the provisions in that behalf contained in this Act or any other statute or in the Memorandum and Articles of Association of the Company or in any regulations not inconsistent therewith.

98. Without prejudice to the generality of the Powers of the Board of Directors as stated above, the Directors shall exercise certain powers as specified under Section 293 of the Act, with the required consent and approval of the share-holder in General Meeting and within the limits and subject to the conditions as may be specified in the resolution approved by the share holders.

99. Without derogating from the powers vested in the Board of Directors underAct and these Articles, the Board shall exercise certain powers specified under Section 292 of the Act by means of resolution passes at the meeting of the Board.

100. Without prejudice general powers of the Board under the Act and this Articles, the Directors may, form time to time and subject to the restrictions contained in the Act, delegate to any of the directors, Committee of directors, employees or other persons including any firm or body corporate any of the powers, authorities and discretions for the time being vested in the Directors.

101. (a) The meeting of the Board may be summoned through the Secretary or any other person authorised in this behalf by the Board, at the instance of the Chairman of the Board.

(b) Unless otherwise advised by the Chairman of the Board, the meetings will be held at the Registered Office of the Company.

PROCEEDINGS OF BOARD

102. The Board of Directors may meet for the despatch of business, adjourn and otherwise regulate its meetings as it thinks fit.

103. (a) Save as otherwise expressly provide in the Act all questions arising at any meeting of the Board shall be decided by a majority of votes.

(b) In case of equality of votes the Chairman of the Board, if any, shall have a second or casting vote.

104. (a) The Board may elect as Chairman of its meeting and determine the period for which he is to hold office.

(b) If no such Chairman is elected, or if at any meeting the Chairman is not present within five minutes after the time appointed for holding the meeting, the directors present may choose one their number to be Chairman of the meeting.

105. (a) The Board may subject to the provisions of the Act, delegate any of its powers to committees consisting of such number of its body as it thinks fit.

(b) Any committee so formed shall in the exercise of the powers so delegated conform to any regulations that may be imposed on it by the Board.

106. All acts done by any meeting of the Board or of a committee thereof or by one persons acting as a director shall, notwithstanding that it may be afterwards discovered that there was some defect in the appointment of any one or more of such directors or of any person acting as aforesaid or that they or any of them were disqualified, be as valid as if every such director or such person had been duly appointed and was qualified to be a director.

107. (a) A resolution paised by circulation, without a meeting of the Board ora Committee of the Board shall, subject to the provisions of the Act and sub article (ii) hereof, be as valid and effectual as a resolution duly passed at a meeting of the board or of a Committee duly called and held.

(b) A resolution shall be deemed to have been duly passed, if the resolution has been duly circulated in draft together with necessary papers, if any, to all the directors or to all the members of the Committee at their respective address registered with the Company and has been approved by a majority of the directors or members of the Committee as are entitled to vote at the resolution.

THE SEAL

108. (a) The Board shall keep and provide for the safe custody of the Common Seal

(b) The seal of the Company shall not be affixed to any instrument except by the authority of a resolution of the Board or of a Committee of the Board authorised by it in that behalf and except in the presence of at least one director and the Secretary or such other person as the Board may appoint for the purpose.

DIVIDENDS AND RESERVE

109. The Company in general meeting may declare dividends, but no d ividend shall exceed the amount recommended by the Board.

110. The Board may from time to time pay to the members such interim. dividends as appear to it to be justified by the profits of .the company.

111. (a) The Board may, before recommending any dividend set aside out of the profits of the Company such sums as it thinks proper as a reserve or reserves which shall at the discretion of the Board be applicable for any purpose to which the profits of the Company may be property applied including provisions for meeting contin gencies or for equalising dividends and pending such application, may, at the like discretion, either be employed in the business of the company or be invested in such investments (other than shares of the Company) as the Board may, from time to time think fit.

(b) The Board may also carry forward any profits which it may think prudent.

112. (a) Subject to the rights of persons, if any, entitled to special rights as to dividends, all dividends shall be declared and paid according to the amounts paid or credited as paid on the shares in respect whereof the dividend is paid.

(b) No amount paid or credited as paid on a share in advance of calls shall be treated for the purpose of this regulation as paid on the share.

(c) All dividends shall be apportioned and paid proportionately to the amounts paid or credited as paid on the shares during any portion or portions of the period in respect of which the dividend is paid, but if any share is issued on term providing that if shall rank for dividend as from particular date such share shall rank for dividend accordingly.

d) The Board may deduct from any dividend payable to any member all sums of money, if any, presently payable by him to the Company on account of calls or otherwise.

113. (a) Any dividend, interest or other moneys payable in cash in respect of shares may be paid by Claque or Warrant sent through the post directed to the registered address of the holder or, in the case joint holders who is first named on the register of members or to such person and to such address the holder of shares may in writing direct.

114. Any one or two or more joint holders of a share may give effectual receipts for any dividends, bonuses or other moneys payable in respect of such share.

115. No dividend shall bear interest against the Company.

115. (a) No unclaimed dividend shall be forfeited by the Boards. As regards all dividends unpaid or unclaimed, the Company shall comply with the provisions of Section 205-A and 205-B of the Act.

ACCOUNTS

116. The Board shall cause to be kept in accordance with Section 209 of the Act proper books of account. The books of accounts shall be kept at the Registered Office of the Company or at its Branch Office or at such other place in India as the Board may decide. If it is so decided, the Company will file required notice with the Registrar.

CAPITALISATION OF PROFITS

117. i. The Company in General meeting may upon the recommendation of the Board, resolve-

(a) that it is desirable to capatilise any part of the account for the time being standing to the credit of any of the Company's reserve accounts or to the credit of the profit and loss account, or otherwise available for distribution and

(b) that such sum be accordingly set free for distribution in the manner specified in sub-article (ii) hereto amongst the members who would have been entitled thereto, if distributed by way of dividend and inthe same proportions.

ii. The sum aforesaid shall not be paid in cash but shall be applied subject to the provision contained in sub-article (ii) hereto, either in or towards :

(a) Paying up and amounts for the time being unpaid on any shares held by such members respectively.

(b) Paying up in full unissuod shares of the Company to be allotted and distributed, credited as fully paid up, to and amongst such members in the proportions aforesaid; as Bonus Shares, or

(c) Partly in the way specified in sub-clause (a) and partly as specified in sub-clause (b) first above stated.

iii. A share premium account and capital redemption reserve account may, for the purpose of this regulation, only be applied in the paying up of unissued share to be issued to member of the Company as fully paid bonus shares.

iv. The Board shall give effect to the resolution passed by the company in presence of the above provisions.

118. i Whenever such a resolution as aforesaid shall have been passed the Board shall -

(a) make all appropriations and applications of the undivided profits resolved to be capitalised there by, and all allotments and issues of fully paid share if any and

(b) generally do all acts and things required to give effect thereto.

ii. The Board shall have full power:

(a) to make such provision by the issue of fractional certificates of by payment in cash or otherwise as it thinks fit, in case of shares ordebentures becoming distributable in fractions, and also

(b) to authorise any person to enter on behalf of all the members entitled thereto, into an agreement with the Company providing for the allotment to them respectively, credited as fully paid-up any further shares to which they may be entitled upon such capitalisation of (as the case may require) for the payment by the Company on their behalf, by the application thereto of their respective proportions of the profits resolved to be capitalised, of the amounts or any part of the amounts remaining unpaid on their existing shares.

iii. Any agreement made under such authority shall be effective and binding on all such members.

AUDIT

119. Once at least in every year the accounts of the Company shall be examined and the correctness of the Balance Sheet and Profit and Loss Account ascertained by one or more Auditor or Auditors.

120. The Company at the Annual General Meeting in each year shall appoint an Auditor or Auditors to hold office until the conclusion of next Annual General Meeting of the Company and as well as duly comply with the provisions of Section 224 to 231 of the Act.

121. The Directors may fill any casual vacancy in the office of Auditor.

122. The remuneration of the Auditors shall be fixed by the Board on the authority of the Company in General meeting except that the remuneration of any Aud#m appointed to full any casual vacancy may be fixed by dw Board.

123. Every account of the Company when audited and approved by a General Meeting Shall be conclusive except as regards any error discovered therein within 3 months next after the approval thereol. Whenever any such error is discovered within that period the account shall forthwith be corrected and thencelorth shall be conclusive.

WINDING UP

124. i. If the Company shall be would up the liquidator may with the sanction of a special resolution of the Company and any other sanction required by the Act divide among the members in spice or kind the whole or any part of the assets of the Company whether they shall consist of property of the same kind or not.

ii. For the purpose aforesaid, the liquidator may set such value as he deemed fail upon any property to be divided as aforesaid and may determine how' such division shall be carried out as between the members or different classes of members.

iii. The liquidator may with the like sanction vest the whole or anypart of such assets to trustees upon such trusts for the benefit of contributors as the liquidators with the like sanction shall think fit but so that no member shall be compelled to accept any shares or other securities where on there is any liability.

SECRECY

125. Subject to the provisions of the Act and these Articles, no member or other person shall be entitled to visit or inspect the Company's Works premises without the permission of the Directors or the Managing Director or any authorised person or to require discovery of or any information respecting any detail of the Company's trading or any other matter which may be in the nature of a trade secret, mastery of trade or secret process which may relate to the conduct of the Company and which in the opinion of the Directors will be inexpedient in the interest of the members of the Company to communicate to the public.

INDEMNITY

126. Subject to Sec. 201 of the Act; every office or agent for the time being of the Company shall be indemnified out of the assets of the Company against any liability incurred by him in defending any proceedings whether civil or criminal in which judgments is given in his favour or in which he is acquitted or in connection with any application under Section 633 in which relief is granted to him by the Court.

We, the several persons, whose names and address are subscribed below are desirous of being formed into a Company in pursuance of this Articles of Association and we respectively agree to take the number of shares in the capital of the company set opposite to our respective names.

Names, Adresses, Signatures, Descriptions and Occupations of Subscribers	Number of Shares taken by each Subscriber	Name , Address, Description and Occupation of Witness
M.C. JAIN Son of Shri Chetan Pradesh Jain 17, May Fair Road, Calcutta-19 (Business)	100	**S. K. JAIN** Son of Shri Mahal Chand Saraogi, 13, Mukhram Kanoria Road, Howrah. Service
G.C.KOTIA Son of Shri Chetan Pradesh Jain 17, May Fair Road Calcutta - 19 (Business)	100	
K. K. JAIN Son of Shri Swaroop Chand Jain 17, May Fair Road Calcutta - 19 (Business)	100	
TOTAL :	300	

(Three Hundred)

Calcutta, Dated this 27th day of July 1976